

Defendant Ford has met its initial burden of showing that the causes of action asserted in Plaintiff's complaint have no merit. Having filed no opposition, Plaintiff has failed to show that a triable issue of one or more material facts exists. Accordingly, defendant Ford's motion for summary judgment is GRANTED.

IV. CONCLUSION

Based on the foregoing, the motion for summary judgment is GRANTED. The Court will prepare the formal Order.

Calendar Line # 6

Case Name Liangbei Wang vs Apple Inc.

Case No. 25CV468204

Demurrer

Before the court is defendant Apple Inc.'s demurrer to plaintiff's first amended complaint. Pursuant to California Rule of Court 3.1308, the court issues its tentative ruling as follows.

I. BACKGROUND

Plaintiff Liangbei Wang ("Plaintiff") alleges that in 2017 – 2018, Plaintiff created and actively used Apple ID and iCloud email accounts. (First Amended Complaint ("FAC"), at unnumbered page 3). In early 2024, Plaintiff discovered he could log in but email boxes were inaccessible. (*Id.*) Between 2024 and 2025, Plaintiff repeatedly contacted defendant Apple Inc. ("Apple") support, provided identity verification, and requested restoration of access and data export. (*Id.*). Defendant Apple refused or failed to provide relief. (*Id.*).

Plaintiff alleges defendant Apple knowingly and wrongfully restricted access to Plaintiff's iCloud email accounts. (*Id.*). Plaintiff further alleges defendant Apple erased or withheld historical iCloud drive contents, causing loss of critical data including cryptocurrency private keys and transaction records. (*Id.*).

On June 16, 2025, Plaintiff, a self-represented litigant¹², filed a complaint against defendant Apple.

On September 18, 2025, defendant Apple filed a demurrer to Plaintiff's complaint.

An October 16, 2025 minute order reflects the court (Hon. Deen) sustained defendant Apple's demurrer with leave to amend.

On November 12, 2025, Plaintiff filed the now operative FAC. In it, Plaintiff identifies and asserts the following causes of action:

- (1) Breach of Written Contract
- (2) Breach of Implied Covenant of Good Faith
- (3) Violation of Stored Communications Act (18 U.S.C. §2701)
- (4) Conversion/ Trespass to Chattels
- (5) Unfair Competition (Bus. & Prof. Code §17200)

¹² Although a judge should ensure that self-represented litigants are not being misled or unfairly treated (see *Gamet v. Blanchard* (2001) 91 Cal.App.4th 1276, 1284), self-represented litigants are not entitled to special treatment with regard to the Rules of Court or Code of Civil Procedure. "[W]e cannot disregard the applicable principles of law and accord defendant any special treatment because he instead elected to proceed in propria persona. [Citations.]" (*Stein v. Hassen* (1973) 34 Cal. App. 3d 294, 303). "A litigant has a right to act as his own attorney [citation] 'but, in so doing, should be restricted to the same rules of evidence and procedure as is required of those qualified to practice law before our courts.'" (*Lombardi v. Citizens Nat'l Trust & Sav. Bank* (1955) 137 Cal.App.2d 206, 208-209).

On December 22, 2025, defendant Apple filed the motion now before the court, a demurrer to Plaintiff's FAC.

II. LEGAL STANDARD

Pursuant to Code of Civil Procedure section 430.10, a party may demur to a complaint on the grounds that it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e)). A demurrer tests whether the complaint states a cause of action. (*Hahn v. Mirda* (2007) 147 Cal.App.4th 740, 747 (*Hahn*)). When considering demurrers, courts accept all well pleaded facts as true. (*Fox v. JAMDAT Mobile, Inc.* (2010) 185 Cal.App.4th 1068, 1078). In ruling on a demurrer, the Court treats it "as admitting all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law." (*Piccinini v. Cal. Emergency Management Agency* (2014) 226 Cal.App.4th 685, 688, citing *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318 (*Blank*)).

III. ANALYSIS

A. BREACH OF WRITTEN CONTRACT

"To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff's performance of the contract or excuse for nonperformance, (3) the defendant's breach, and (4) the resulting damage to the plaintiff." (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186; see also CACI, No. 303).

If the contract is written, "the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference." (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 459).

In his first cause of action, Plaintiff alleges, "Apple breached its iCloud Terms of Service by failing to provide continued access and failing to provide prior notice of suspension." However, as defendant Apple argues, Plaintiff has alleged a breach of the iCloud Terms of Service, but has not set forth what those terms are.

In opposition, Plaintiff counters by stating, "This argument elevates form over substance." Without citation to any legal authority, Plaintiff contends he is "not required to reproduce Apple's lengthy, unilateral service agreements verbatim. Alleging the contract's effect and breach is sufficient."

"In an action based on a written contract, a plaintiff may plead the legal effect of the contract rather than its precise language." (*Construction Protective Services, Inc. v. TIG Specialty Ins. Co.* (2002) 29 Cal.4th 189, 199). "This is more difficult, for it requires a careful analysis of the instrument, comprehensiveness in statement, and avoidance of legal conclusions, and it involves the danger of variance where the instrument proved differs from that alleged; it is not frequently employed. Nevertheless, it is an established method." (4 Witkin, California Procedure (4th ed. 1997) Pleading, §480, p. 573).

Even if the court found Plaintiff had adequately pleaded the legal effect of the iCloud Terms of Service, defendant Apple argues additionally that Plaintiff has not alleged his own performance. Plaintiff's performance is indeed an element of a breach of contract claim. "The plaintiff cannot enforce the defendant's obligation unless the plaintiff has performed the conditions precedent imposed on him. [Citation]. Accordingly, the allegation of performance is an essential part of his cause of action. [Citation.]" (4 Witkin, California Procedure (4th ed. 1997) Pleading, §491, pp. 581 – 582).

Plaintiff does not address his failure to plead performance in opposition.

Accordingly, defendant Apple's demurrer to the first cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for breach of written contract is SUSTAINED with 10 days' leave to amend.

B. BREACH OF IMPLIED COVENANT OF GOOD FAITH

"Every contract imposes upon each party a duty of good faith and fair dealing in its performance and its enforcement." (Rest.2d Contracts, § 205). "There is an implied covenant of good faith and fair dealing in every contract that neither party will do anything which will injure the right of the other to receive the benefits of the agreement." (*Comunale v. Traders & General Ins. Co.* (1958) 50 Cal.2d 654, 658; see also CACI No. 325).

"The covenant of good faith and fair dealing, implied by law in every contract, exists merely to prevent one contracting party from unfairly frustrating the other party's right to receive the benefits of the agreement actually made. [Citation.] The covenant thus cannot 'be endowed with an existence independent of its contractual underpinnings.' [Citations.] It cannot impose substantive duties or limits on the contracting parties beyond those incorporated in the specific terms of their agreement." (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 349 – 350 (*Guz*)).

"The implied covenant of good faith and fair dealing rests upon the existence of some specific contractual obligation. [Citation.] 'The covenant of good faith is read into contracts in order to protect the express covenants or promises of the contract, not to protect some general public policy interest not directly tied to the contract's purpose.' [Citation.] . . . 'In essence, the covenant is implied as a supplement to the express contractual covenants, to prevent a contracting party from engaging in conduct which (while not technically transgressing the express covenants) frustrates the other party's rights to the benefits of the contract.'" (*Racine & Laramie, Ltd. v. Department of Parks & Recreation* (1992) 11 Cal.App.4th 1026, 1031 – 1032).

In the second cause of action, Plaintiff alleges, "Apple abused its discretionary power by maintaining a lockout for over [12] months, frustrating the core benefit of the contract."

Defendant Apple demurs to this second cause of action by arguing that a breach of implied covenant of good faith does not exist independently and supplements an existing contract, but since Plaintiff has not sufficiently stated a cause of action for breach of contract, then the second cause of action cannot exist by itself. Plaintiff offers no argument in opposition.

Accordingly, defendant Apple's demurrer to the second cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for breach of implied covenant of good faith is SUSTAINED with 10 days' leave to amend.

C. VIOLATION OF STORE COMMUNICATIONS ACT, 18 U.S.C. §2701

Except as provided in subsection (c) of this section whoever—

- (1) intentionally accesses without authorization a facility through which an electronic communication service is provided; or
- (2) intentionally exceeds an authorization to access that facility;

and thereby obtains, alters, or prevents authorized access to a wire or electronic communication while it is in electronic storage in such system shall be punished as provided in subsection (b) of this section.

(18 U.S.C. §2701, sub. (a)).

In the third cause of action, Plaintiff alleges, “Apple knowingly and intentionally prevented Plaintiff, an authorized user, from accessing stored electronic communications.”

“[Where] recovery is based on a statutory cause of action, the plaintiff must set forth facts in his [or her] complaint sufficiently detailed and specific to support an inference that each of the statutory elements of liability is satisfied. General allegations are regarded as inadequate. [Citations.]” (*Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5).

Defendant Apple argues, among other things, that to state a claim for a violation of the Stored Communications Act (“SCA”), a plaintiff must allege that defendant Apple either “intentionally accesses without authorization a facility through which an electronic communication service is provided; or intentionally exceeds an authorization to access that facility,” but Plaintiff here has done neither. Plaintiff has only alleged the subsequent portion of the statute, i.e., that defendant Apple “prevents authorized access to a wire or electronic communication while it is in electronic storage in such system.”

Plaintiff does not confront this argument in opposition.

Plaintiff also sidesteps defendant Apple’s primary argument which is that it comes within one of the stated exceptions found at 18 U.S.C. section 2701, subsection (c), namely, “Subsection (a) of this section does not apply with respect to conduct authorized by the person or entity providing a wire or electronic communications service.” Plaintiff alleges defendant Apple has prevented his access to an electronic communication service provided by defendant Apple, to wit, iCloud and or Apple ID.

Accordingly, defendant Apple’s demurrer to the third cause of action of Plaintiff’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for violation of the SCA is SUSTAINED with 10 days’ leave to amend.

D. CONVERSION/ TRESPASS TO CHATTELS

“Conversion is the wrongful exercise of dominion over the property of another. The elements of a conversion claim are: (1) the plaintiff’s ownership or right to possession of the property; (2) the defendant’s conversion by a wrongful act or disposition of property rights; and (3) damages. Conversion is a strict liability tort. The foundation of the action rests neither in the knowledge nor the intent of the defendant. Instead, the tort consists in the breach of an absolute duty; the act of conversion itself is tortious. Therefore, questions of the defendant’s good faith, lack of knowledge, and motive are ordinarily immaterial. [Citations.]” (*Burlesci v. Petersen* (1998) 68 Cal.App.4th 1062, 1066, [80 Cal.Rptr.2d 704]). The basis of a conversion action “ ‘rests upon the unwarranted interference by defendant with the dominion over the property of the plaintiff from which injury to the latter results. Therefore, neither good nor bad faith, neither care nor negligence, neither knowledge nor ignorance, are the gist of the action.’ [Citations.]” (*Ibid.*).

(*Los Angeles Federal Credit Union v. Madatyan* (2012) 209 Cal.App.4th 1383, 1387; see also CACI, No. 2100).

Under California law, trespass to chattels "lies where an intentional interference with the possession of personal property has proximately caused injury." *Intel Corp. v. Hamidi* (2003) 30 Cal. 4th 1342, 1350-51, 1 Cal. Rptr. 3d 32, 71 P.3d 296 (2003). To state a trespass to chattels claim, a plaintiff must plead that "(1) the defendant intentionally and without authorization interfered with plaintiff's possessory interest in the computer system; and (2) defendant's unauthorized use[] proximately caused damage." *In re Facebook Internet Tracking Litig.*, 263 F. Supp. 3d 836, 842 (N.D. Cal. 2017) (quoting *eBay, Inc. v. Bidder's Edge, Inc.*, 100 F. Supp. 2d 1058, 1069-70 (N.D. Cal. 2000)).

(*Brodsky v. Apple Inc.* (N.D.Cal. 2020) 445 F. Supp. 3d 110, 122-123 (*Brodsky*)).

Defendant Apple demurs by arguing that there are no allegations in the FAC that it “affirmatively targeted and obtained [Plaintiff’s] emails nor that Apple affirmatively worked to deprive [Plaintiff] of access to his account.” However, as noted above, intent, good faith, lack of knowledge, and motive are immaterial. Defendant Apple then goes on to argue (as the court understands) that there are no allegations that its conduct was wrongful. Defendant Apple draws from the *Brodsky* decision to argue that a trespass for chattels claim does not survive in a situation where the plaintiff has voluntarily installed software as then the alleged conduct is not done “without authorization,” and a software update is not an “intentional interference.”

The court does not find the facts in *Brodsky* to be comparable to those alleged here. Plaintiff here has alleged his email was made “inaccessible,” that defendant Apple repeatedly refused or failed to restore Plaintiff’s access to his email despite verification of his identity, and continue to lock him out of his email content and cloud files. The court finds such allegations to be distinguishable from the allegations in *Brodsky* that defendant Apple, there, interfered with plaintiffs’ access to their Apple devices by “requiring an extraneous login process through two-factor authentication that is imposed on Plaintiffs and Class members without authorization or consent.”

Accordingly, defendant Apple’s demurrer to the fourth cause of action of Plaintiff’s complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for conversion/ trespass to chattels is **OVERRULED**.

E. UNFAIR COMPETITION (BUS. & PROF. CODE, §17200)

“The UCL prohibits ‘any unlawful, unfair or fraudulent business act or practice and unfair, deceptive, untrue or misleading advertising,’ and any act prohibited by the false advertising law. (Bus. & Prof. Code, § 17200). “Section 17200 ‘borrows’ violations from other laws by making them independently actionable as unfair competitive practices. In addition, under section 17200, a practice may be deemed unfair even if not specifically proscribed by some other law.” (*Korea Supply Co. v. Lockheed Martin Corp.* (2003) 29 Cal.4th 1134, 1143, internal quotations and citations omitted).

Plaintiff’s fifth cause of action alleges, “Apple’s secretive lockout policies and refusal to explain or restore access constitute unfair business practices.”

Initially, defendant Apple demurs by arguing that there are allegations to support this conclusory fifth cause of action’s allegation that defendant Apple refused to restore Plaintiff’s access. Defendant Apple suggests the loss of access is unintentional and invites the court to infer from the allegations that defendant Apple simply has been unable to restore access despite trying as opposed to accepting Plaintiff’s assertion that defendant Apple has “refused” to restore Plaintiff’s access. Defendant Apple apparently overlooks the allegation in the “Factual Background and Timeline” section of the FAC where Plaintiff alleges, “2024 – 2025: Plaintiff repeatedly contacted Apple Support, provided identify verification, and required restoration of access and data export. Apple refused or failed to provide relief.” This statement is equivocal as to whether the inability to restore Plaintiff’s access is intentional or otherwise, but a plaintiff is to plead alternatively and it is an allegation nevertheless which the court accepts as true for purposes of a demurrer.

Defendant Apple argues secondarily that Plaintiff’s other causes of action which seek monetary damages and arise out of the same conduct that this fifth cause of action for unfair competition is premised upon means that this unfair competition claim is precluded. Defendant Apple cites *Aton Center, Inc. v. United Healthcare Ins. Co.* (2023) 93 Cal.App.5th 1214, 1248 (*Aton*) for the proposition that a UCL claim fails where it seeks overlapping legal and equitable remedies. In the court’s review, the *Aton* court did not reach such a conclusion. The trial court in *Aton*

“found that Aton could not maintain its UCL claims, which were equitable in nature, because it had an adequate remedy at law—its other causes of action for which it sought money damages.” (*Ibid.*). However, the “trial court [also] ruled that Aton's UCL claim fails for reasons independent of concerns about Aton's ability to seek overlapping legal and equitable remedies.” The *Aton* court determined (arguably dicta) that it would be futile to allow any further amendment since amendment would not resolve all the other independent reasons that the UCL claim failed.

Finally, defendant Apple essentially recycles one of its earlier arguments on the third cause of action for violation of the SCA (i.e., that defendant Apple is exempt as a service provider) so a violation of the SCA cannot serve as the basis for Plaintiff's UCL claim. Even so, this last argument by defendant Apple is a demurrer to only a portion of a cause of action which is not proper. (See *Financial Corp. of America v. Wilburn* (1987) 189 Cal.App.3d 764, 778— “[A] defendant cannot demur generally to part of a cause of action;” see also *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682—“A demurrer does not lie to a portion of a cause of action;” *Pointe San Diego Residential Community, L.P. v. Procopio, Cory, Hargreaves & Savitch, LLP* (2011) 195 Cal.App.4th 265, 274—“A demurrer challenges a cause of action and cannot be used to attack a portion of a cause of action.”).

Accordingly, defendant Apple's demurrer to the fifth cause of action of Plaintiff's complaint on the ground that the pleading does not state facts sufficient to constitute a cause of action [Code Civ. Proc., §430.10, subd. (e)] for unfair competition is **OVERRULED**.

IV. CONCLUSION

Based on the foregoing, the Court **ORDERS** the following: Defendant's demurrer to the first, second, and third causes of action are **SUSTAINED** with ten (10) days' leave to amend for this hearing date. Defendant's demurrer to the fourth and fifth causes of action is **OVERRULED**. The Court will prepare the formal Order.

Calendar Line # 7

Case Name AB Landscaping, Inc. vs Andrew J. Fry as co-trustee of the Andrew Fry and Jin Z. Fry Family Trust et al

Case No. 25CV473100

Motion to Strike

I. BACKGROUND

This construction dispute arises from a Complaint alleging five causes of actions for breach of contract, foreclosure of mechanics lien, common count, quantum meruit, and payment of penalties that was filed on August 19, 2025 by Plaintiff. Defendants/Cross-Complainants Andrew J. Fry and Jin Z. Fry filed a cross-complaint alleging fourteen causes of actions on October 8, 2025.

On December 10, 2025, Cross-Defendants AB Landscaping, Inc. and Victor Arellano (collectively Cross-Defendants) filed this special motion to strike the Cross-Complaint. The motion is accompanied by proof of electronic service on Cross-Complainants' counsel on December 2, 2025. The motion was filed with a notice of errata on the special motion to strike on December 18, 2025 that was accompanied by a proof of service by electronic service on Cross-Complainants' counsel on that same day.

The motion is unopposed. Per Code of Civil Procedure section 1005(b) opposition papers were due on July 31, 2026. A failure to oppose a motion may be deemed a consent to the granting of the motion. California Rule of Court Rule 8.54c. A failure to oppose a motion may be deemed a consent to the granting of the motion. (California Rule of Court Rule 8.54(c)). Failure to oppose a motion leads to the presumption that the defendant has no meritorious arguments. (*Laguna Auto Body v. Farmers Ins. Exchange* (1991) 231 Cal.App.3d 481, 489).